

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 2976

By: Gise

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8 COMMITTEE SUBSTITUTE

9 An Act relating to the Department of Environmental
10 Quality; requiring the promulgation of rules
11 establishing water quality criteria for aluminum;
12 listing criteria for promulgated rules; authorizing
13 adoption or incorporation by reference of certain
14 criteria; requiring criteria be applied to certain
15 permitting; listing requirements for application to
16 permits; requiring criteria be included in certain
17 triennial review; authorizing updates to criteria;
18 providing for codification; and providing an
19 effective date.

20 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

21 SECTION 1. NEW LAW A new section of law to be codified
22 in the Oklahoma Statutes as Section 2-6-112 of Title 27A, unless
23 there is created a duplication in numbering, reads as follows:

24 A. By December 31, 2028, the Department of Environmental
Quality shall promulgate rules that establish numeric water quality
criteria for aluminum applicable to surface waters of the State of
Oklahoma. The criteria shall:

1 1. Be developed in accordance with Section 303(c) of the
2 federal Clean Water Act and its implementing regulations;

3 2. Be consistent with current U.S. Environmental Protection
4 Agency (EPA) guidance, including use of any recommended hardness-
5 based or water-chemistry-based criteria equations, bioavailability
6 models, or site-specific adjustment procedures; and

7 3. Incorporate site-specific conditions, where scientifically
8 appropriate, including water hardness, pH, dissolved organic carbon,
9 or other parameters affecting aluminum toxicity.

10 The Department may adopt or incorporate by reference any EPA
11 criteria, guidance documents, or calculation tools necessary to
12 implement the provisions of this section.

13 B. Following promulgation of the rules required in subsection
14 A, the Department shall apply the numeric aluminum water quality
15 criteria in all Oklahoma Pollutant Discharge Elimination System
16 (OPDES) permits where aluminum may be discharged. The Department
17 shall, consistent with federal and state law:

18 1. Require permittees to conduct monitoring and reporting of
19 aluminum and related parameters necessary to evaluate compliance
20 with water-quality-based standards;

21 2. Establish water-quality-based effluent limits where needed
22 to ensure compliance with the numeric criteria;
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1 3. Consider site-specific conditions, mixing zones, dilution
2 allowances, and receiving-water characteristics in calculating any
3 water-quality-based effluent limits; and

4 4. Include any additional monitoring, best management
5 practices, or adaptive management conditions necessary to assure
6 protection of water quality.

7 C. The Department shall include the aluminum criteria in each
8 triennial review of Oklahoma Water Quality Standards required under
9 Section 303(c) of the Clean Water Act. The Department shall revise
10 such criteria as needed to reflect new science, updated EPA
11 recommendations, or site-specific data, and shall submit any
12 revisions to the U.S. Environmental Protection Agency for approval.

13 SECTION 2. This act shall become effective November 1, 2026.
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15 COMMITTEE REPORT BY: COMMITTEE ON ENERGY AND NATURAL RESOURCES
16 OVERSIGHT, dated 03/04/2026 - DO PASS, As Amended.
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